CORPORATE POLICY REVIEW REPORT

A Review of the

PRIVACY POLICY & DATA PROTECTION

of

ADANI ENTERPRISES LIMITED

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ORGANIZATION REVIEWED: ADANI ENTERPRISES LIMITED

POLICY NAME: PRIVACY POLICY & DATA PROTECTION

1. INTRODUCTION

Adani Enterprises Limited (AEL) is the flagship company and business incubator of the Adani Group, one of India's largest diversified business conglomerates. AEL has grown from a trading company into an incubator of new businesses, having nurtured ventures such as Adani Ports, Adani Power, Adani Transmission and Adani Green Energy before they became independent, listed entities. Its current portfolio spans coal trading and mining, airports, roads, data centres, green hydrogen and agri-business. Running such a wide and technology-driven business means AEL and the wider Adani Group routinely collect and process personal data — of employees, job applicants, website visitors, vendors, customers and other stakeholders — making a clear data privacy framework essential to daily operations.

The policy selected for this review is the Privacy Policy & Data Protection framework applicable to Adani Enterprises Limited. As with several of its governance policies, AEL follows the group-level "Privacy Notice" published by Adani Group, which applies uniformly across group entities including AEL, and is supplemented internally by data-handling and information-security practices at the business level. This Notice sets out how personal data is collected, used, stored, shared and protected, and describes the rights available to individuals whose data is processed.

The purpose of this review is to study the Privacy Policy & Data Protection framework as a case study in digital governance — to understand what the policy provides, how it is structured, how well it aligns with India's data protection law, and where it could be improved. This is a structured, student-level analysis rather than a legal audit, intended to build practical understanding of how large Indian corporates are adapting their data-handling practices to the Digital Personal Data Protection Act, 2023.

2. POLICY OVERVIEW

2.1 Name and Nature of the Policy

The policy is published as the "Privacy Notice" of Adani Group and is applicable to Adani Enterprises Limited as a constituent entity of the Group. It is a compliance-oriented, rights-based document rather than an internal operating manual — it defines key terms

(Personal Data, Data Principal, Data Fiduciary, Data Processor, Processing), states the legal basis on which data is collected and used, and describes the rights individuals hold over their own data. The policy is explicitly framed around India's Digital Personal Data Protection Act, 2023 (DPDPA), making it a direct compliance response to a specific, recent piece of legislation.

2.2 Scope of the Policy

The Notice applies to personal data collected through AEL's and the wider Group's websites and digital platforms, covering interactions such as browsing the website, applying for jobs, and subscribing to newsroom updates. Because it is issued at the Group level and referenced across listed entities including AEL, its principles are meant to apply consistently no matter which Adani Group company's website or platform an individual interacts with.

2.3 Individuals and Stakeholders Covered

The policy covers any individual whose personal data is collected by AEL/Adani Group — primarily website visitors, job applicants, and newsroom subscribers, but by extension it is also relevant to employees (whose data is processed for employment purposes), vendors, and other business contacts whose data is handled digitally. The policy makes special reference to children under 18 years of age, from whom data is not knowingly collected.

2.4 Key Objectives of the Policy

- To ensure personal data is collected, stored, used and shared lawfully, in line with the Digital Personal Data Protection Act, 2023.
- To clearly state the purposes for which data is collected (job applications, newsroom updates, website analytics) and limit its use to those purposes.
- To inform individuals of their rights over their own data, including access, correction, erasure and grievance redressal.
- To put in place technical and organisational security measures (encryption, data masking, access control) to protect personal data.
- To establish a clear breach-notification process, both to affected individuals and to the Data Protection Board of India.

3. KEY PROVISIONS OF THE POLICY (FOCUS: DATA COLLECTION, CONSENT, DATA USAGE, SHARING, RETENTION, SECURITY, USER RIGHTS)

3.1 Data Collection

Data is collected in two ways: information the individual directly provides (for example, through a job application form or a newsroom subscription) and information collected automatically through cookies for website analytics. The policy is specific about the categories of data collected for each purpose — for instance, full name, mobile number, email ID, resume and cover letter for job applications, as against only name and email ID for newsroom updates — reflecting a data-minimisation approach where only the data needed for a stated purpose is gathered.

3.2 Consent and Lawful Basis of Processing

Cookie-based analytics data is processed only after the individual's consent is obtained, and the policy commits to respecting the individual's stated preferences. Beyond consent, the policy also relies on other lawful grounds recognised under Section 7 of the DPDPA — such as voluntary sharing of data for a specified purpose, performance of functions by the State, compliance with law, medical or health emergencies, and employment-related processing. This dual basis (consent plus statutory legitimate uses) is consistent with how the DPDPA itself structures lawful processing.

3.3 Data Usage and Sharing

Personal data collected is used strictly for the stated purpose it was collected for — processing job applications, sending job-opportunity updates, sharing newsroom content, managing the individual's relationship with the company, and improving the website through analytics. On sharing, the policy takes a notably protective stance: it states that personal data is not shared with third-party service providers, and that all internal data handling follows strict confidentiality standards, which is a stronger commitment than many comparable Indian corporate privacy notices make.

3.4 Retention and Security

Data is retained only as long as necessary for the operational purpose it was collected for, or as required by law, after which it is either deleted or archived under an internal retention and disposal policy. On security, the policy commits to technical and organisational safeguards including encryption, data masking and access control, and designates a dedicated contact point (cbccyber1@adani.com) for reporting suspected misuse, loss or unauthorised access to personal data.

3.5 User Rights and Grievance Redressal

Individuals are given the right to access their personal data, request correction of inaccurate data, request erasure in specific situations, and access a grievance redressal mechanism for complaints about how their data is processed. Uniquely, the policy also recognises a "right to nominate" — allowing an individual to nominate another person to exercise their data rights in case of incapacity or death, a provision drawn directly from the DPDPA. If an individual is not satisfied with the company's own grievance redressal, they may escalate the complaint to the Data Protection Board of India.

3.6 Breach Notification

In the event of a data breach, the policy commits to notifying affected individuals as soon as possible, at their registered email ID, disclosing the nature, extent, and timing of the breach. In line with DPDPA requirements, the company also commits to intimating the Data Protection Board of India within the applicable timelines.

4. COMPLIANCE AND GOVERNANCE ANALYSIS

The policy is built directly around India's Digital Personal Data Protection Act, 2023 — the country's principal data protection legislation. Its structure mirrors the Act's key concepts almost term for term: Data Principal, Data Fiduciary, Data Processor and Processing are all defined exactly as the DPDPA defines them, and the stated lawful grounds for processing echo Section 7 of the Act. The recognition of a right to nominate is a distinctly Indian, DPDPA-specific right (not commonly found in GDPR-style policies), which shows the policy

has been drafted with the domestic law specifically in mind rather than simply adapted from a global template.

The breach-notification commitment — informing affected individuals and the Data Protection Board of India within appropriate timelines — reflects the statutory breach-reporting obligation under the DPDPA. The escalation path from internal grievance redressal to the Data Protection Board also mirrors the two-tier grievance structure envisaged under the Act, where the regulator acts as the forum of last resort after internal remedies are exhausted.

From a governance standpoint, the policy is issued and maintained at the Adani Group level and applied consistently across listed constituent companies, including AEL. This centralised approach is consistent with SEBI's Listing Obligations and Disclosure Requirements (LODR) Regulations, which expect listed companies to maintain sound information-technology and data-governance practices as part of overall corporate governance, and reduces the risk of inconsistent data practices across different Adani Group entities.

5. POLICY EVALUATION

5.1 Strengths

- Close and explicit alignment with the Digital Personal Data Protection Act, 2023, including DPDPA-specific concepts such as the right to nominate.
- A strong data-minimisation practice — the policy specifies exactly which data elements are collected for each named purpose, rather than collecting broadly.
- An unusually protective sharing commitment: personal data is stated not to be shared with third-party service providers.
- A clear, two-tier grievance mechanism, escalating from an internal contact point to the statutory Data Protection Board of India.
- A defined breach-notification commitment covering both the affected individual and the regulator.

5.2 Effectiveness and Practicality of Implementation

The policy is written in reasonably accessible language and is easy for a website visitor or job applicant to locate and read, which supports practical awareness. Its real-world effectiveness, however, depends on operational discipline that a public-facing notice alone cannot guarantee — for instance, whether the promised technical safeguards (encryption, data masking, access control) are consistently applied across every AEL system that touches personal data, and whether requests for access, correction or erasure are honoured within a reasonable time. As with most privacy notices, the gap between the stated commitment and the internal technical implementation is difficult to verify from the outside.

5.3 Gaps, Limitations and Areas Requiring Improvement

- The publicly available Notice does not specify a defined response timeline for access, correction or erasure requests, which can leave individuals uncertain about when to expect a resolution.

- Although a Data Principal Rights form is referenced, at the time of review the actual link to the form was not populated on the public page, which weakens the practical usability of the rights described.

- The policy does not name a specific Data Protection Officer (DPO) or Significant Data Fiduciary status, even though the DPDPA framework contemplates such a role for organisations handling data at scale.

- There is limited public disclosure of data-protection performance metrics — for example, number of grievances received, average resolution time, or number of breaches reported in a year — which limits external assessment of how the policy performs in practice.

5.4 Comparison with Good Corporate Practice

Compared with privacy policies of other large Indian and global technology-forward companies (such as Infosys or Tata Consultancy Services), AEL/Adani Group's Notice covers the core DPDPA elements well but is comparatively brief on operational detail — for example, it does not publish a data-protection impact assessment summary or a named DPO, both of which more mature privacy programmes disclose. On the positive side, its explicit "no third-party sharing" commitment and its clear reference to the DPDPA's

right-to-nominate provision are practices that go beyond the bare statutory minimum and reflect good-practice drafting.

6. BUSINESS RELEVANCE

In an economy where the Digital Personal Data Protection Act, 2023 has introduced real financial penalties for non-compliance, and where trust in how a company handles personal data increasingly shapes its relationships with employees, job applicants, customers and regulators, a clear and legally grounded privacy policy is a core business necessity rather than a formality. For a group as large and digitally active as Adani — operating job portals, investor platforms, newsrooms and customer-facing digital services across its listed entities — consistent, lawful data handling directly protects the company from regulatory penalties and reputational harm.

For employees and job applicants, the policy provides assurance that personal information such as resumes and contact details will be used only for stated purposes and protected through defined security measures. For website visitors and other stakeholders, the cookie-consent mechanism and stated data-minimisation approach offer a degree of control and transparency over how their information is used. For the company itself, robust data governance reduces legal exposure under the DPDPA, strengthens investor and regulator confidence, and supports the broader corporate governance expectations placed on a listed flagship entity.

More broadly, the policy contributes to AEL's digital governance and risk-management architecture: by embedding lawful-basis processing, breach notification, and rights-based grievance redressal into a single accessible document, it reduces the company's exposure to regulatory action, litigation and reputational damage arising from data mishandling — an increasingly significant risk category for any large, technology-dependent Indian corporate.

7. RECOMMENDATIONS

- Activate and publish a working Data Principal Rights request form, rather than leaving the link unpopulated, so that individuals can exercise their rights without relying solely on email correspondence.
- Publish defined response timelines for access, correction, erasure and grievance-redressal requests, to build measurable accountability into the rights framework.
- Name a designated Data Protection Officer or equivalent point of contact, and disclose whether AEL/Adani Group entities meet the DPDPA's threshold for a "Significant Data Fiduciary," to strengthen transparency around data governance responsibility.
- Publish periodic (for example, annual) aggregate disclosures on data-related grievances received and resolved, and any breaches reported, similar to transparency practices seen in more mature privacy programmes.
- Extend the publicly available Notice to explicitly cover data collected in an employment/HR context (beyond job applications), given how much personal data a large workforce generates.
- Conduct periodic data-protection impact assessments and internal audits of the technical safeguards (encryption, access control, data masking) described in the policy, to verify that stated commitments are being operationally met.

8. CONCLUSION

The Privacy Policy & Data Protection framework applicable to Adani Enterprises Limited is a well-structured, DPDPA-aligned document that clearly defines key data-protection concepts, states the lawful basis for processing, limits data usage to specified purposes, and

gives individuals a defined set of rights along with a two-tier grievance mechanism. Its explicit commitment not to share personal data with third-party service providers, and its recognition of the DPDPA-specific right to nominate, reflect thoughtful, India-specific drafting rather than a generic global template.

At the same time, the policy would benefit from more operational detail — a working rights-request form, defined response timelines, a named accountable officer, and periodic public disclosure of grievance and breach statistics. This review highlights a broader lesson relevant to any business or fintech student: as data protection law in India matures under the DPDPA, a privacy policy's real value lies not just in stating rights and safeguards on paper, but in the operational systems that make those rights genuinely exercisable and those safeguards independently verifiable. A policy that is transparent, actively enforced and regularly reviewed becomes a genuine trust asset — for employees, customers and regulators alike.

9. REFERENCES

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